

Opinion of the Court

granted certiorari to determine whether to overturn that doctrine.¹ 585 U. S. 1029 (2018).

II

Gamble contends that the Double Jeopardy Clause must forbid successive prosecutions by different sovereigns because that is what the founding-era common law did. But before turning to that historical claim, see Part III, *infra*, we review the Clause’s text and some of the cases Gamble asks us to overturn.

A

We start with the text of the Fifth Amendment. Although the dual-sovereignty rule is often dubbed an “exception” to the double jeopardy right, it is not an exception at all. On the contrary, it follows from the text that defines that right in the first place. “[T]he language of the Clause . . . protects individuals from being twice put in jeopardy ‘for the same offence,’ not for the same *conduct* or *actions*,” *Grady v. Corbin*, 495 U. S. 508, 529 (1990), as Justice Scalia wrote in a soon-vindicated dissent, see *United States v. Dixon*, 509 U. S. 688 (1993) (overruling *Grady*). And the term “[o]ffence” was commonly understood in 1791 to mean ‘transgression,’ that is, ‘the Violation or Breaking of a Law.’” *Grady*, 495 U. S., at 529 (Scalia, J., dissenting) (quoting *Dictionarium Britannicum* (Bailey ed. 1730)). See also 2 R. Burn & J. Burn, *A New Law Dictionary* 167 (1792) (“OFFENCE, is an act committed against law, or omitted where the law requires it”). As originally understood, then, an “offence” is defined by a law, and each law is defined by a sovereign. So where there are two sovereigns, there are two laws, and two “offences.” See *Grady*, 495 U. S., at 529

¹ In addressing that question, we follow the parties’ lead and assume, without deciding, that the state and federal offenses at issue here satisfy the other criteria for being the “same offence” under our double jeopardy precedent. See *Blockburger v. United States*, 284 U. S. 299, 304 (1932).